

**IN THE HIGH COURT OF JUDICATURE AT BOMBAY CRIMINAL APPELLATE
JURISDICTION**

Criminal Writ Petition No. 905 of 2026

IN THE MATTER OF: Aman Kulkarni ... Petitioner Versus State of Maharashtra
& Ors. ... Respondents

WRITTEN SUBMISSIONS ON BEHALF OF THE PETITIONER

1. The Petitioner, a college student, was arrested on 09.02.2026 for a post on a social media platform criticising a municipal contract. He seeks quashing of the FIR and compensation for illegal detention.

2. The provision under which he was first booked is a reincarnation of a section that no longer exists. In *Shreya Singhal v. Union of India*, (2015) 5 SCC 1 : AIR 2015 SC 1523, the Supreme Court declared:

“Section 66A of the Information Technology Act, 2000 is struck down in its entirety being violative of Article 19(1)(a) and not saved under Article 19(2).”

3. In *Shreya Singhal* (supra), the Court also observed that “As the arrest curtails freedom, brings humiliation and casts scars forever, we feel differently.”

4. The arrest was made without any assessment of its necessity, in breach of the directions in *Arnesh Kumar v. State of Bihar*, (2014) 8 SCC 273.

5. Criticism of public authorities is protected speech, and the State cannot criminalise it under the guise of public order: *Digital Freedom Foundation v. Union of India*, (2021) 4 SCC 889.

6. The police also refused to register the Petitioner's own complaint against the persons who assaulted him in custody. In *Lalita Kumari v. Govt. of U.P.*, (2014) 2 SCC 1, the Constitution Bench held:

“Registration of FIR is mandatory under Section 154 of the Code, if the information discloses commission of a cognizable offence and preliminary inquiry is permissible in such a situation.”

7. The Supreme Court has recognised the State's duty to provide institutional safeguards for dignity in *Vishaka v. State of Rajasthan*, (1997) 6 SCC 241 :

(1997) 5 SCALE 453.

8. Personal liberty can be curtailed only by a procedure that is fair, just and reasonable: *Maneka Gandhi v. Union of India*, [1978] 2 SCR 621.

9. The FIR deserves to be quashed and the Petitioner compensated for his illegal detention.

PLACE: Mumbai DATE: 18.03.2026

COUNSEL FOR THE PETITIONER